

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Arreaga	Team: Squad #06	CCRB Case #: 201607815	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 09/04/2016 1:42 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/4/2018	Precinct: 48
Date/Time CV Reported Sun, 09/04/2016 1:48 PM	CV Reported At: IAB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 09/12/2016 1:33 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Yonathan Guity	13821	941868	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Katherine Lugo	11463	949230	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Yonathan Guity	Discourtesy: Police Officer Yonathan Guity spoke discourteously to § 87(2)(b)	A . Unsubstantiated

Case Summary

On September 4, 2016, § 87(2)(b) filed the following complaint with the Internal Affairs Bureau (IAB) via telephone. On September 12, 2016, the Civilian Complaint Review Board (CCRB) received this complaint under IAB log #16-31544.

On September 4, 2016, at approximately 1:42 p.m., Police Officer Yonathan Guity and Police Officer Katherine Lugo of the 48th Precinct responded to § 87(2)(b)'s apartment located at § 87(2)(b), in the Bronx, in response to a complaint of harassment. Police Officer Guity allegedly sneezed and stated "bullshit" in response to § 87(2)(b)'s complaint (**Allegation A**). § 87(2)(b) was not arrested or issued a summons regarding this incident.

No video footage was found regarding this incident.

Mediation, Civil and Criminal Histories

- Mediation was offered to but rejected by § 87(2)(b) § 87(2)(b)
- As per the NYC Comptroller's Office, as of September 28, 2016, § 87(2)(b) has not filed a Notice of Claim regarding this incident (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) has been involved in two previous CCRB complaints § 87(2)(b)
[REDACTED]
[REDACTED]
- [REDACTED] NYPD for 10 years and has had six allegations in three cases with no substantiated allegations (see officer history). § 87(2)(g)
[REDACTED]

Potential Issues

- § 87(2)(b) stated that he recorded his conversation with Police Officer Lugo and Police Officer Guity. However, was unable to provide the recording to the CCRB and explained that since the file was corrupted he deleted it from his phone prior to his interview.

Findings and Recommendations

Allegation A –Discourtesy: Police Officer Yonathan Guity spoke discourteously to § 87(2)(b)

It is undisputed that Police Officer Guity and Police Officer Lugo responded to § 87(2)(b)'s residence for a complaint of sexual harassment made by § 87(2)(b) against his neighbor. § 87(2)(g)

On September 22, 2016, § 87(2)(b) provided a phone statement (Board Review 03) and was interviewed at the CCRB on September 27, 2016 (Board Review 04). § 87(2)(b) stated that he explained to the officers that he had an ongoing situation with his neighbor regarding sexual harassment allegations made against him. As § 87(2)(b) was about to provide his name to Police

Officer Lugo, Police Officer Guity sneezed and stated “bullshit” at the same time towards § 87(2)(b) in response to his complaint. Police Officer Lugo looked over to Police Officer Guity but made no comment. Officers then went to the § 87(2)(b) floor to speak to § 87(2)(b)s neighbor to address the sexual harassment allegations.

On October 5, 2016, Police Officer Lugo was interviewed at the CCRB (Board Review 05). Police Officer Guity denied sneezing or stating “bullshit” towards § 87(2)(b). He stated that on the contrary, he explained to § 87(2)(b) that he was unable to file a report because the person whom he was complaining about was not present to address the allegations of sexual harassment. He stated that he tried to help § 87(2)(b) and did not want him to think that he had disregarded his complaint.

On October 12, 2016, Police Officer Guity was interviewed at the CCRB (Board Review 06). Although Police Officer Lugo did not recall the incident at the time of her CCRB interview, she denied hearing Police Officer Guity state “bullshit” to § 87(2)(b). She stated that she could not believe that the allegation was made against Police Officer Guity and stated “I could never imagine him saying that.”

§ 87(2)(g) It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Squad: 6

Investigator:	_____ Signature	_____ Print	_____ Date
Squad Leader:	_____ Title/Signature	_____ Print	_____ Date
Reviewer:	_____ Title/Signature	_____ Print	_____ Date